

25STCV37040 25STCV37040

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-08-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C510%2C08%2F21%2F2026

Source SHA-256: 60e775ac5dcf8f8dfdc5c6197f7d4b243e7a46a133163e96cbf882ca16c3bb91

Case Number: 25STCV37040 Hearing Date: August 21, 2026 Dept: 510

No. 4 – John B Beach v. Kevin H Kim

Plaintiff John B Beach's

Request for Default Judgment

Plaintiff John B Beach requests

court judgment by default against Defendant Kevin H Kim. Plaintiff's application for default judgment suffers two defects.

Prejudgment Interest

On the proposed judgment,

Plaintiff checked the box for "Prejudgment interest at the annual rate of" and filled in the rate as "10.00%." (JUD-100, § 6.a(2).) Plaintiff requests \$139,204.10 in interest. Plaintiff did not include interest computations to support his request. Plaintiff must provide "[i]nterest computations as necessary." (Cal. Rules of Court, rule 3.1800(a)(3).) Such computations require identifying the principal amount, beginning date, end date, and interest rate.

Excessive Attorney Fees

Plaintiff also seeks

excessive attorney fees. Attorney fees for a default judgment are generally limited to a specified schedule based on the amount of damages. (Local Rules 3.207(a), 3.214(a).) A plaintiff may recover "a fee greater than listed in the [default] schedule because of extraordinary services." (Rule 3.214(d).) Plaintiff's proposed judgment includes a request for \$12,348.85 in attorney

fees. That is greater than the schedule, which provides for attorney fees of “\$2,890 plus 1% of the excess over \$100,000” for judgments over \$100,000. (Rule 3.214(a).) Plaintiff does not show extraordinary services justifying a greater fee.

Disposition

Plaintiff John B Beach's request
for default judgment is denied without prejudice.